



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session
Majority Research Staff

HCR2048: elected officials; salary; prohibition

KUPPER FLOOR AMENDMENT

1. Removes the following individuals from provisions relating to withholding salaries until the general appropriation bill for the next fiscal year is enacted:
 - a. Secretary of State;
 - b. Attorney General;
 - c. State Treasurer; and
 - d. Superintendent of Public Instruction.

KUPPER FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.C.R. 2048
(Reference to printed resolution)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:

2 1. Article V, section 12, Constitution of Arizona, is proposed to
3 be amended as follows if approved by the voters and on proclamation of the
4 Governor:

5 12. Compensation of elective state officers; commission
6 on salaries for elective state officers;
7 legislative salaries; salary deferral or
8 withholding; resumption

9 Section 12. A. The salaries of those holding elective
10 state offices shall be as established by law from time to
11 time, subject to the limitations of article ~~6~~ VI, section 33
12 OF THIS CONSTITUTION and to the limitations of article ~~4~~ IV,
13 part 2, section 17 OF THIS CONSTITUTION. Such salaries as are
14 presently established may be altered from time to time by
15 the procedure established in this section or as otherwise
16 provided by law, ~~except that legislative salaries may be~~
17 ~~altered only by the procedures established in this section.~~

18 B. A commission to be known as the commission on
19 salaries for elective state officers is authorized to be
20 established by the legislature. The commission shall be
21 composed of five members WHO ARE appointed from private life,
22 two of whom shall be appointed by the governor and one each by
23 the president of the senate, the speaker of the house of
24 representatives, and the chief justice. At such times as may
25 be directed by the legislature, the commission shall report to
26 the governor with recommendations concerning the rates of pay
27 of elected state officers. The governor, ~~shall upon~~ ON the
28 receipt of such A report, SHALL make recommendations to the

1 legislature with respect to the exact rates of pay ~~which he~~
2 **THAT THE GOVERNOR** deems advisable for those offices and
3 positions other than for the rates of pay of members of the
4 legislature. ~~Such recommendations shall become effective at a~~
5 ~~time established by the legislature after the transmission of~~
6 ~~the recommendation of the governor without aid of further~~
7 ~~legislative action unless, within such period of time, there~~
8 ~~has been enacted into law a statute which establishes rates of~~
9 ~~pay other than those proposed by the governor, or unless~~
10 ~~either house of the legislature specifically disapproves all~~
11 ~~or part of the governor's recommendation. The recommendations~~
12 ~~of the governor, unless disapproved or altered within the time~~
13 ~~provided by law, shall be effective; and any 1971~~
14 ~~recommendations shall be effective as to all offices on the~~
15 ~~first Monday in January of 1973. In case of either a~~
16 ~~legislative enactment or disapproval by either house, the~~
17 ~~recommendations shall be effective only insofar as not altered~~
18 ~~or disapproved.~~

19 C. The recommendations of the commission as to
20 legislative salaries shall be certified by ~~it~~ **THE COMMISSION**
21 to the secretary of state, and the secretary of state shall
22 submit to the qualified electors at the next regular general
23 election the question, "Shall the recommendations of the
24 commission on salaries for elective state officers concerning
25 legislative salaries be accepted? [] Yes [] No." Such
26 recommendations if approved by the electors shall become
27 effective at the beginning of the next regular legislative
28 session without any other authorizing legislation. ~~All~~
29 ~~recommendations which become effective under this section~~
30 ~~shall supersede all laws enacted prior to their effective date~~
31 ~~relating to such salaries.~~

32 D. **THE SALARIES OF THOSE HOLDING ELECTIVE STATE OFFICE**
33 **SHALL BE ESTABLISHED BY LAW, AND CHANGES IN SALARY MAY NOT**
34 **APPLY DURING THE TERM OF ANY INCUMBENT, EXCEPT THAT SALARIES**
35 **OR SUBSISTENCE PAYMENTS MAY BE TEMPORARILY WITHHELD OR**
36 **DEFERRED PURSUANT TO SUBSECTION E OF THIS SECTION IF THE**
37 **GENERAL APPROPRIATION BILL HAS NOT BEEN SIGNED INTO LAW FOR**
38 **THE NEXT FISCAL YEAR ON OR BEFORE APRIL 30.**

39 E. **IF THE GENERAL APPROPRIATION BILL HAS NOT BEEN**
40 **SIGNED INTO LAW FOR THE NEXT FISCAL YEAR ON OR BEFORE APRIL**
41 **30, THE FOLLOWING INDIVIDUALS MAY NOT RECEIVE THEIR REGULAR**
42 **SALARIES OR SUBSISTENCE PAYMENTS FOR ANY PAY PERIOD THAT**
43 **BEGINS AFTER APRIL 30:**

- 44 1. **THE GOVERNOR.**
45 ~~2. THE SECRETARY OF STATE.~~
46 ~~3. THE ATTORNEY GENERAL.~~
47 ~~4. THE STATE TREASURER.~~

1 ~~5. THE SUPERINTENDENT OF PUBLIC INSTRUCTION.]~~
2 ~~[6.]~~ ~~[2.]~~ THE LIEUTENANT GOVERNOR.
3 ~~[7.]~~ ~~[3.]~~ MEMBERS OF THE LEGISLATURE.
4 F. ALL COMPENSATION THAT IS WITHHELD PURSUANT TO
5 SUBSECTION E OF THIS SECTION SHALL RESUME BEGINNING THE FIRST
6 FULL PAY PERIOD FOLLOWING THE ENACTMENT OF THE GENERAL
7 APPROPRIATION BILL FOR THE NEXT FISCAL YEAR. ANY COMPENSATION
8 WITHHELD PURSUANT TO THIS SECTION SHALL NOT BE PAID
9 RETROACTIVELY.
10 2. The Secretary of State shall submit this proposition to the
11 voters at the next general election as provided by article XXI,
12 Constitution of Arizona.

13 Enroll and engross to conform
14 Amend title to conform

NICK KUPPER

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